



May 13, 2026

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**VIA CERTIFIED MAIL
VIA PUBLIC RECORDS ACT PORTAL**

California High-Speed Rail Authority
Public Records Officer
770 L Street, Suite 620 MS1
Sacramento, CA, 95814

Re: California Public Records Act Request No. 1 of California High Speed Partners
RFP No. HSR25-89 – Track and Systems Construction Contract (“RFP”)
re California High Speed Partners’ Proposal

To whom it may concern:

This firm represents California High Speed Partners (“CHSP”), a joint venture of RailWorks and Colas Rail, in connection with the above-referenced procurement. Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), CHSP hereby requests production of the following records from the California High-Speed Rail Authority (the “Authority”).

This request seeks Documents sufficient to assess (1) the Authority’s evaluation and handling of CHSP’s proposal; (2) the determination that CHSP’s proposal was “nonresponsive”; and (3) the procurement process as applied to CHSP.

I. DEFINITIONS AND INSTRUCTIONS

For purposes of this request:

- “Documents” or “Records” shall include all writings within the meaning of Government Code § 7920.545, including emails, memoranda, notes, draft documents, scoring sheets, and electronic files.
- “Communications” shall include emails, text messages, Teams or other messaging platforms, and written correspondence.
- The relevant time period is **November 26, 2025 through May 15, 2026**, which corresponds to the issuance of the RFP through the Authority’s evaluation and decision-making process for this procurement.

Please produce records in electronic format where available.

II. REQUESTED RECORDS

A. Evaluation, Scoring, and Ranking of CHSP's Proposal

All Documents reflecting, referring, or relating to the evaluation, scoring, ranking, or review of CHSP's proposal, including but not limited to:

- Individual evaluator scoring sheets
- Consensus scoring materials
- Technical evaluation matrices
- Price evaluation materials (if any)
- Draft and final scoring summaries
- Notes or comments by evaluators
- Comparative analyses, including any comparison to other proposers

B. Responsiveness / Minimum Qualification Determination

All Documents relating to the Authority's determination that CHSP's proposal was nonresponsive or failed to satisfy minimum qualifications, including but not limited to:

- Checklists (including those analogous to RFP, Attachment A review materials)
- Internal memoranda, recommendations, or analyses
- Legal review, advice, or communications (excluding privileged content, but identifying the existence of such review)
- Documents identifying, explaining, or supporting the basis for disqualification

C. Design Oversight Manager / Professional Engineer Issue

All Documents concerning the Authority's consideration of the issue cited in the disqualification – namely, licensure of the Design Oversight Manager – including but not limited to:

- Interpretations of RFP requirements relating to California licensure
- Consideration of substitutions or clarifications
- Discussions or analyses regarding waiver of deviations
- Internal or external communications regarding this issue

D. Communications Regarding CHSP's Proposal

All Communications:

- Among Authority personnel
- Between the Authority and CHSP
- Between the Authority and any consultants, advisors, or third parties

concerning:

- CHSP's proposal
- Evaluation or review of CHSP's proposal
- Responsiveness or disqualification
- Any identified deficiencies or issues

E. Proposal Access and Review Records

All Documents sufficient to show:

- When and how CHSP's proposal volumes (including Volume 2 – Technical Proposal) were accessed or reviewed
- Any logs, records, or tracking of access to proposal materials
- Identification of individuals who accessed or reviewed each proposal volume

F. Procurement Process and Evaluation Procedures

All Documents relating to:

- Instructions or guidance provided to evaluators
- Procedures for determining responsiveness versus evaluation/scoring
- Internal procurement protocols applied in this procurement

G. Timeline and Decision-Making Records

All Documents sufficient to show:

- The timeline of CHSP proposal review
- Dates of key decisions (including responsiveness and disqualification)
- Internal decision-making processes relating to CHSP

III. PRODUCTION AND RESPONSE

If any portion of a requested record is claimed to be exempt, please:

- Identify the specific exemption(s) claimed;
- Provide a log describing the withheld record(s) sufficient to evaluate the claim; and
- Produce all reasonably segregable non-exempt material.

If you contend any request is unduly burdensome, CHSP is willing to meet and confer regarding scope. Given the time-sensitive nature of this matter, we request rolling production as records are identified.

Thank you for your prompt attention to this matter. Please do not hesitate to contact me should you have any questions.

Sincerely,

COZEN O'CONNOR

By: Gregory Welch